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Toppers' Answers

TOPIC

WOMEN EMPOWERMENT

General Studies Paper-II: Governance


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7. प्रत्येक वर्ष ग्रेजुएट होने वाली और कार्यक्षेत्र में प्रवेश करने वाली महिलाओं की संख्या के मध्य का व्यापक अंतराल एक गंभीर समस्या है जिसे हल किए जाने की आवश्यकता है। भारत के संदर्भ में चर्चा कीजिए। (उत्तर 150 शब्दों में दीजिए)

The wide gap between the number of females graduating every year and those entering the workspace is an issue of paramount importance that needs to be addressed. Discuss in the context of India. (Answer in 150 words) 10

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India has a very high ratio of 50:50 among graduates but in the labour force this drops to 1:2 for women : men. (PLFS data)

Major reasons for low PLFP

1) Domestication of women theory – Chandra Mohanty.
2) Toothless Sexual Harassment at workplace Act ⇒ #MeToo movement
3) Social control over mobility.
   - eg return home before dark.
4) Reproductive career break.
5) others → glass ceiling
   → glass cliff
   → wage gap @ 30% Global wage report (ILO)

Case : Feminization U hypothesis by Eco Survey – less in labour force due to more in secondary education

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Way ahead to address this

Need to address

1) 27% increase in GDP by female parity — IMF Chief
2) Uphold Article 39(d) of equality at work.

1) Promote female centric fields
   - Eg: Take cues from success of US fashion industry.
2) Promote procurement by government from vulnerable sections — South Africa model
3) Skilling of women — promote value of equity in PMKVY 3.0
4) Women centric development
   - ↳ promote SHG.

This would help with gender equality (SDG-5) and women led development.

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With high gross enrolment ratio among women and pass percentage in higher education, women account only 18% of labour wages with a meagre labour force participation of ~33%. (77% for men).

Mismatch in females graduating & entering workplace because →

(1) Social stigma - Notions of patriarchy and gender stereotypes hinder the participation of women in workplace.

(2) Issues in Workplace - Highlighted in Vishakha vs State of Rajasthan (1994), workplace harassment discourage women in offices.

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③ Expected social norms of 'Kulabadhu' and 'Pativrata' leads to compromising of career for child birth and nurturing.

④ Biological issues like pregnancy and menstruation hinder the labour force participation of women.

⑤ Glass ceiling - only 11% women in board level position, women are discouraged from taking leadership position.

⑥ Pink collarisation - Stereotype job roles like attendants, receptionist, women discouraged in STEM (only 18% representation)

Steps
- → POSH guidelines, SHE BOX & Nirbhaya Fund
- → Code on social security - allowing women to work at night
- → Maternity leaves - 26 weeks
- → Creche for inclusive workplace.
- → Private sector - Zomato menstrual leaves, IBM posts for career break women.

To fulfill the ideals of SDG-5 for gender equality, female LFPR must be improved to increase GDP by 27%. (IMF)

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Q.18) Medical Termination of Pregnancy (Amendment) Act, 2021 has expanded access of women to safe and legal abortion services, but it fails to address the critical issues of reproductive rights and bodily autonomy of women. Examine. (15 marks, 250 words)

मेडिकल टर्मिनेशन ऑफ प्रेग्नेंसी (संशोधन) अधिनियम, 2021 ने महिलाओं की सुरक्षित और कानूनी गर्भपात सेवाओं तक पहुंच का विस्तार किया है, लेकिन यह महिलाओं के प्रजनन अधिकारों और शारीरिक स्वायत्तता के महत्वपूर्ण मुद्दों को संबोधित करने में विफल है। परीक्षण करें। (अंक 15, शब्द 250)

The Medical Termination of Pregnancy (Amendment) Act - has put the highlight on the need for safe abortion as it is the 3rd highest cause of maternal deaths in India.

Expansion of women's rights

Provisions :

Duration of pregnancy	Course of action
upto 20 weeks	2 medical practitioner
20 - 24 weeks	cases of rape, under age 2 medical practitioner
More than 24	Substantial foetal abnormalities Medical Board
Threat to woman's life	No restriction

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- This has made the right to abortion more liberalised by extending it to 24 weeks.
- Right to 'failure of contraception' provision has been extended to 'unmarried women' — reflecting the right of unmarried women to have access to abortion.
- The applicant can also approach the High Court for cases falling outside this purview.

However, key issues remain unsettled.

(*) The Right to Abortion and a Woman's Bodily Autonomy under Art 21 as highlighted by Suchita Srivastava case — considers even the 24 week limit to be arbitrary — viability of a foetus. (no conclusive scientific proof)

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(+) Positive steps of Sexual and Reproductive Health Awareness and Education not highlighted.

↳ NFHS-4 - only 8% of couples in India use contraceptives.

(*) Right of a woman to decide for her body considering mental and physical state — violated by provision of Medical Board to decide on 'appropriateness' of foetal abnormality

As seen in the Poland protests against repressive abortion law many countries have completely liberalised abortion law in interest of women's right to their own body.

We must bring necessary changes - while also encouraging appropriate reproductive health education in schools from an early age.

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Q.6) Social reforms without political empowerment are meaningless whereas political empowerment without social reforms remains hollow. Discuss with respect to women representation in local bodies and legislatures. (10 Marks, 150 words)

राजनीतिक सशक्तिकरण के बिना सामाजिक सुधार निरर्थक हैं जबकि सामाजिक सुधारों के बिना राजनीतिक सशक्तिकरण खोखला है। स्थानीय निकायों और विधानसभाओं में महिलाओं के प्रतिनिधित्व के संबंध में चर्चा करें। (10 अंक, 150 शब्द)

The 73rd and 74th Constitutional Amendment Acts not only introduced decentralised government in the country - but by giving 33% reservation to women - marked a new age in women empowerment.

HOWEVER this highlights a dichotomy - due to absence of major transformation at the grassroot level.

Social reforms without political empowerment refers to the initial steps by social reformers like Rammohun Roy or individual examples of empowered women like Savitribai Phule and Dr. Muthulakshmi Reddy.

But until social reforms are not translated into actual political rights (Right to vote)

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Inheritance right (Hindu Code Bill) and Right to Equal representation (50% gramsabha representation for women in Haryana and Bihar, 33% all over India) — it cannot lead to legal empowerment (As one can approach the courts)

HOWEVER mere political empowerment means nothing &

1) society remains same - Patriarchy manifested in other ways
   Eg 'Sarpanch pati' phenomenon.
2) Double burden of work : Men unwilling to share in household work while women work.
3) Acceptance of political provisions takes a long time

Thus the state (In politics) and civil society (For society) should work together for comprehensive social & political women empowerment
Eg The example of Fatima Bibi and Chhavi Rajawat as female sarpanches bringing about change is a startling example.

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17. जब भारत में महिलाओं के यौन और प्रजनन स्वास्थ्य की बात आती है, तब अधिकार-आधारित विमर्श को न केवल सामाजिक मानदंडों द्वारा बल्कि कानूनी मानदंडों द्वारा भी बड़े पैमाने पर नजरअंदाज किया गया है। विवेचना कीजिए। (उत्तर 250 शब्दों में दीजिए)
When it comes to sexual and reproductive health of women in India, rights-based discourse has largely been bypassed not just by the societal norms but also by the legal norms. Discuss. (Answer in 250 words) 15

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The sexual & reproductive health of women has been a cause of concern since a long time in India.

Though efforts have been made to improve the female health & reduce mortality, there is still a long way to go.

Bypass of Rights based discourse

(A) Societal Norms.

→ Patriarchal society denies adequate rights to women.

→ Poor concern for female health.

Eg → Low access to contraceptives

Eg → Forced child rearing.

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→ Women are treated as objects of sexual gratification.

Eg Rights of husband over his wife.

→ Preference to childlife over women's health during life threatening pregnancies

→ Poor status of menstrual health.

(B) Legal norms

→ No legislation to criminalize marital rape
~ Denial of women rights.

→ Ineffective implementation of laws like Maternity Benefits Act, MTP Act.

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- No effective remedy for sexual abuse
- Lack of govt. initiatives to spread awareness regarding sexual & reproductive health.

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Govt initiatives

- PM Matru Vandana Yojana
- Poshan Abhiyan
- National family planning scheme
- Collaborating with SHGs & NGOs to spread awareness
- ASHA workers.

Above initiatives have helped in increasing the progress towards a rights based approach for women's reproductive health, however, further reforms are required.

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17. What do you understand by feminisation of old age? Highlight the issues associated with it in the Indian context. Also, mention the measures taken by the government in this regard. **(250 words) 15**

वृद्धावस्था के नारीकरण से आप क्या समझते हैं? भारतीय संदर्भ में इससे जुड़े मुद्दों पर प्रकाश डालिए। साथ ही, इस संबंध में सरकार द्वारा उठाए गए कदमों का भी उल्लेख कीजिए।

Feminization of old Age refers to more number of women entering in old age category i.e from above 60 years old than number of men entering such age. In India, this phenomenon is depicted too.



Census 2011

→ ISSUES IN INDIAN CONTEXT

(a) Lack of appropriate data as only figures of census 2011 are available.

(b) Female specific geriatric research is missing in Indian context

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(c) Chronic Illness - < 75% of women elderly suffering from one or more illness as per Longitudinal Aging Survey of India

(d) Isolation due to nuclear families and high internal migration

(e) Digital Illiteracy - only ~1% women elderly in urban areas know use of internet compared to 5% of men (NSSO, 2019).

(f) Lack of government owned old age homes for women

(g) Poverty, Hunger, Malnutrition, exploitation are other challenges

→ **GOVERNMENT MEASURES**

(a) National Social Assistance Programme to help female elderly.

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(b) Integrated Programme for Old persons, to cater to all needs of elderly including female

(c) Vayashree Yojana, Vaya Vandana for pension related issues.

(d) Maintenance of Senior Persons Act, 2017 has been passed

→ WAY FORWARD → female specific geriatric research

→ government owned old age homes

Enhance scope of Atal Pension.

Sensitization of society regarding problems by old age women

Schemes for those women with no children for maintenance & welfare

Digital literacy [Eg] PMGDISHA

→ By Women specific Elderly Interventions, the society would be fulfilling goal of AGI of providing public assistance to elderly.

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12. Recent developments have brought to light the issue of criminalizing marital rape in India. Analyse the implications of ensuring legal protection for victims of marital rape in the country. (Answer in 250 words) 15

Marital rape refers to forcing onto one's spouse without her consent.

It is still not recognised illegal in India.

Need for criminalising Marital Rape

- ensure dignity of women
- rape remains a rape, no matter who the perpetrator is
- next step in human rights reform
- deliver justice to many victims of such crimes
- rising cases of women accusing their spouse of marital rape
- will act as deterrent for those thinking of executing it-
- "rape" as a crime shouldn't be present in any democratic civilised society

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Implications of ensuring legal protection for victims

(1) Will deliver justice to women in private sphere.

(2) Reduce sexual exploitation of women

(3) Ensure "dignity of body" and "choice" to women

But,

(1) It would be difficult to prove a marital rape case - due to lack of evidence.

(2) May be used as a weapon by powerful women for economic gains & - misuse of Dowry Act.

(3) Real victims, those in rural areas etc may remain unaware and might not even report cases.

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(4) May increase judicial pendencies

(5) Prop up of legal challenges -
"Did the man miscontrue the consent?"
"Did the woman withdrew the consent between the act".

Way Forward

↳ Developed nations are seeing the past relations of married couple ⇒ if they have strained relations → No marital rape (misuse), else case is taken up ⇒ this can be done

It is now time to legalise marital rape as highlighted by Justice verma committee while putting adequate safeguards to prevent misuse.

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2. Recognising unpaid work of women is a necessary but challenging task. Discuss. **(150 words) 10**

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women are often relegated to the confines of domestic sphere where they perform the role of a housewife, voluntary care giver for children, old age people, etc. Recently, there has been a debate for recognizing unpaid work of women.

WHY IT IS NECESSARY :-

(1) As per a recent study - women's unpaid labour accounts for 40% of GDP

(2) Recognition will boost confidence → boost economic status → boost decision making power

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(3) It will get accounted for in country's GDP and help government frame adequate policies

(4) Unpaid work in care for children & old age can be replaced with child care & oldage care facilities

CHALLENGES

(1) Difficult & arduous task of counting & regulating

(2) Can affect traditional family system if it comes to be seen as an economic action (job)

(3) Will justify & cement women's role in domestic life.

Economic empowerment of women can be done through education & other employment opportunities till the time that unpaid work recognition is being debated.

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4. Given the deeply gendered impact of population control measures, examine the need to rethink the current approach of population control measures in India. **(150 words) 10**

जनसंख्या नियंत्रण संबंधी उपायों के गहन लैंगिक प्रभाव को देखते हुए, भारत में जनसंख्या नियंत्रण उपायों के वर्तमान दृष्टिकोण पर पुनर्विचार करने की आवश्यकता का परीक्षण कीजिए।

Population control measures are tools employed to limit growth of population by using education, encouraging use of contraceptives & family planning. It started in India in 1952. However, its impact is more widespread on women.

CURRENT APPROACH :-

1. Overburdens women - as per a study while 4 lakh women undergo tubectomy - only around 50000 men undergo vasectomy

2. Focus on contraception - but social acceptability is less.

3. Failed to address problems of

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low child sex ratio - 923:1000, female foeticide, low marriage age, etc.

HOW THIS CAN BE ADDRESSED :-

(1) Women empowerment
- → educational opportunities and nutritional strengthening
- → economic independence.

(2) Contraceptives should be promoted through socially engaging with stakeholders

(3) Need to move away from coercive measures.

(4) Empowering women by educating them about their sexual rights

Thus, an all round approach of engaging with various stakeholders can help address gendered impact of family planning & population control measures

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6. Though various women organisations have played a key role in promoting entrepreneurship among women, there continue to exist obstacles that impede women entrepreneurship. Discuss in the context of India.
(150 words) 10

यद्यपि विभिन्न महिला संगठनों ने महिलाओं के बीच उद्यमिता को बढ़ावा देने में महत्वपूर्ण भूमिका निभाई है, तथापि महिला उद्यमिता के समक्ष अड़चने पैदा करने वाली बाधाएं भी विद्यमान हैं। भारत के संदर्भ में विवेचना कीजिए।

Swami Vivekanand had once said that the best thermometer to measure a country's progress is its treatment of its women. In this regard women entrepreneurship in India has progressed a huge deal but obstacles remain.

OBSTACLES.

* While we see many women entrepreneurs like Vinita Singh (Sugar cosmetics) - women face problems like: -

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(1) unequal wage compared to male counterpart

(2) Sexual harassment at workplace.

(3) Social constraints - family pressure & personal responsibilities

(4) Lack of facilities like separate toilet & creche', etc.

MEASURES TO ADDRESS OBSTACLES

(1) Bring girls back into education - Kanya Shiksha Pravesh

(2) Promoting startup culture

(3) ensure equal wages through legislative backing

(4) Prevention of Sexual harassment (POSH) Act and Internal Complaints committee.

All the above measures can propel women into pursuing entrepreneurship and improve treatment of women & ensure progress

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8. It has been argued by some that raising the minimum age of marriage for females only addresses the symptoms rather than the underlying causes of gender related issues in India. Discuss. **(150 words) 10**

कुछ लोगों द्वारा यह तर्क दिया गया है कि महिलाओं के लिए विवाह की न्यूनतम आयु बढ़ाने से भारत में लैंगिक मुद्दों के अंतर्निहित कारणों के बजाय केवल इसके कुछ संकेतकों का समाधान होगा। विवेचना कीजिए।

Recently, there had been an announcement by PM Modi about an important policy decision in the loop regarding increase in marriage age.

BENEFITS OF PROPOSAL :-

(1) can boost female education & promote higher education & graduation

(2) This can give economic empowerment to women → and boost decision making power

(3) Can reduce dowry deaths, child marriage, domestic violence etc.

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However, it is said to only be a symptomatic treatment because →
1) will not automatically ensure more education
2) can lead to problem with regards age of consent
3) takes away woman's right to marry at the age she wants (post-18 years)

WAY FORWARD :-

1. Education: focus on increasing gross enrollment ratio
2. Nutrition & health → fighting for meta preference
   → providing midday meals
   → reducing anemia.
3. Employment → equal wages
   → Creche + other infrastructure

The cause for gender inequality stems from deep rooted social discrimination which can be addressed through above measures, while increasing marriage age is only symptomatic

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9. There have been arguments that given the socio-economic status of backward castes in India, caste based census is the need of the hour. Do you agree? **(150 words) 10**

भारत में पिछड़ी जातियों के सामाजिक-आर्थिक स्थिति के संदर्भ में, ऐसा तर्क दिया जाता है कि जाति आधारित जनगणना समय की आवश्यकता है। क्या आप इससे सहमत हैं?

There has been growing demand for caste based census as part of the 2021 census - to recognize the weakest of the weak and employ a targeted approach in this upliftment

NEED FOR CASTE BASED CENSUS :-

(1) any public policy can be successful if target beneficiaries are numerically determined

(2) In Tamil Nadu, Arunthathiyar caste is still underrepresented in government services

(3) Sub categorization of OBC can be

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16. What do you understand by feminisation of old age? Highlight the issues associated with it in the Indian context. Also, mention the measures taken by the government in this regard. **(250 words) 15**

वृद्धावस्था के नारीकरण से आप क्या समझते हैं? भारतीय संदर्भ में इससे जुड़े मुद्दों पर प्रकाश डालिए। साथ ही, इस संबंध में सरकार द्वारा उठाए गए कदमों का भी उल्लेख कीजिए।

Of late a trend was been evident - feminization of old age. This has been due to higher life expectancy among women than men at around 74 years compared to 70 years in men. This has led to issues.

ISSUES :-

1. Woman who has been disadvantaged in childhood & womanhood finds herself at a disadvantage

2. SOCIAL ISSUE :-

2.1 Neglect by family

2.2 Feeling of helplessness

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hopelessness & destitution

2.3 Loss of joint family as children move abroad

2.4 Children are embarassed to take care of old mothers & evade responsibility

3 ECONOMIC ISSUE :-

3.1 Due to unemployment - has to live off of - spouse's pension

3.2 This amount is meager & cannot sustain her nor pay for medical bills which charge hefily for geriatric care.

3.3 Fraud, theft & murder is also common in woman living alone

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MEASURES BY GOVERNMENT :-

(1) Rashtriya Vayoshri Yojana - to provide for social security & safety net & Maintenance of elder parents Act.

(2) Indira Gandhi National Social Action Plan - pension for women over 60

(3) Similarly PM Vaya Vandana Yojana exist

(4) Recently, in budget 2021-22 - exemption of income tax for individual above 75 years.

Apart from that many NGO & civil societies like Helpage India also organise volunteer camps & visits to uplift oldage people and give them a diff dignified life

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Q.18) The offence of rape cannot be condoned by marital relationship between victim and culprit. In light of this statement, discuss the issues involved in criminalization of marital rape.

(15 marks, 250 words)

बलात्कार के अपराध को पीड़िता और अपराधी के बीच वैवाहिक संबंधों द्वारा माफ नहीं किया जा सकता है। इस कथन के प्रकाश में वैवाहिक बलात्कार के अपराधीकरण में शामिल मुद्दों की चर्चा कीजिए। (15 अंक, 250 शब्द)

Marital rape is the act of sexual violence committed by the husband of the victim. The Indian Penal Code (IPC) has defines the offence of rape under section 375.

Issues in criminalisation of marital rape

- Legal issues :- The IPC does not recognise the offence of marital rape
  - It carves out an exception: acts committed by husband on wife (over 16 years) do not qualify as an offence.

- Societal issue : Patriarchal mindset of society does not recognise marital rape as an "act of violence".
  - There is an attitude that husband has a right over the woman's (wife's) body.

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- Political issues: sensationalisation and divides created by political groups and parties.
  - Lack of political will to initiate patient deliberation. (eg: delays in filing affidavits in Supreme Court over the matter).

- Economic and financial issues: Rehabilitation and economic empowerment of victim – less than 21% women are a part of labour force and depend heavily on men for resources.

Suggestions and steps for mitigation

- Justice J.S. Verma committee suggested amendment of IPC to include marital rape as an offence.
- Community-led initiatives for women empowerment
  - Safe spaces to speak up
  - economic empowerment through creation of SHGs in urban areas
  - an efficient and enabling support system to ensure zero tolerance for acts of violence.

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- Gender sensitisation at schools and colleges.

Advances in criminal law jurisprudence have proceeded on the dictum of "private is public". Violence against half the population with no legal recourse ~~will~~ only create unstable households and unstable societies. There is a ~~need~~ need to come together and ensure rights and remedies to women — and achieve SDG 10 on time.

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Feedback
(For OFFICE use only)

Structure/ Presentation
Question Interpretation
Content
Value Addition
Total

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7. प्रत्येक वर्ष ग्रेजुएट होने वाली और कार्यक्षेत्र में प्रवेश करने वाली महिलाओं की संख्या के मध्य का व्यापक अंतराल एक गंभीर समस्या है जिसे हल किए जाने की आवश्यकता है। भारत के संदर्भ में चर्चा कीजिए। (उत्तर 150 शब्दों में दीजिए)

The wide gap between the number of females graduating every year and those entering the workspace is an issue of paramount importance that needs to be addressed. Discuss in the context of India. (Answer in 150 words) 10

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Females constitute around 48% of population in India (2011 Census) while literacy rate of around 65%.

There is a WIDE GAP between -

(1) Numbers of females graduating

→ AISHE Report shows that females graduating has outnumbered the males graduates

→ India stands at first in world in STEM female graduates

(2) Those entering workspace

→ The labour force participation

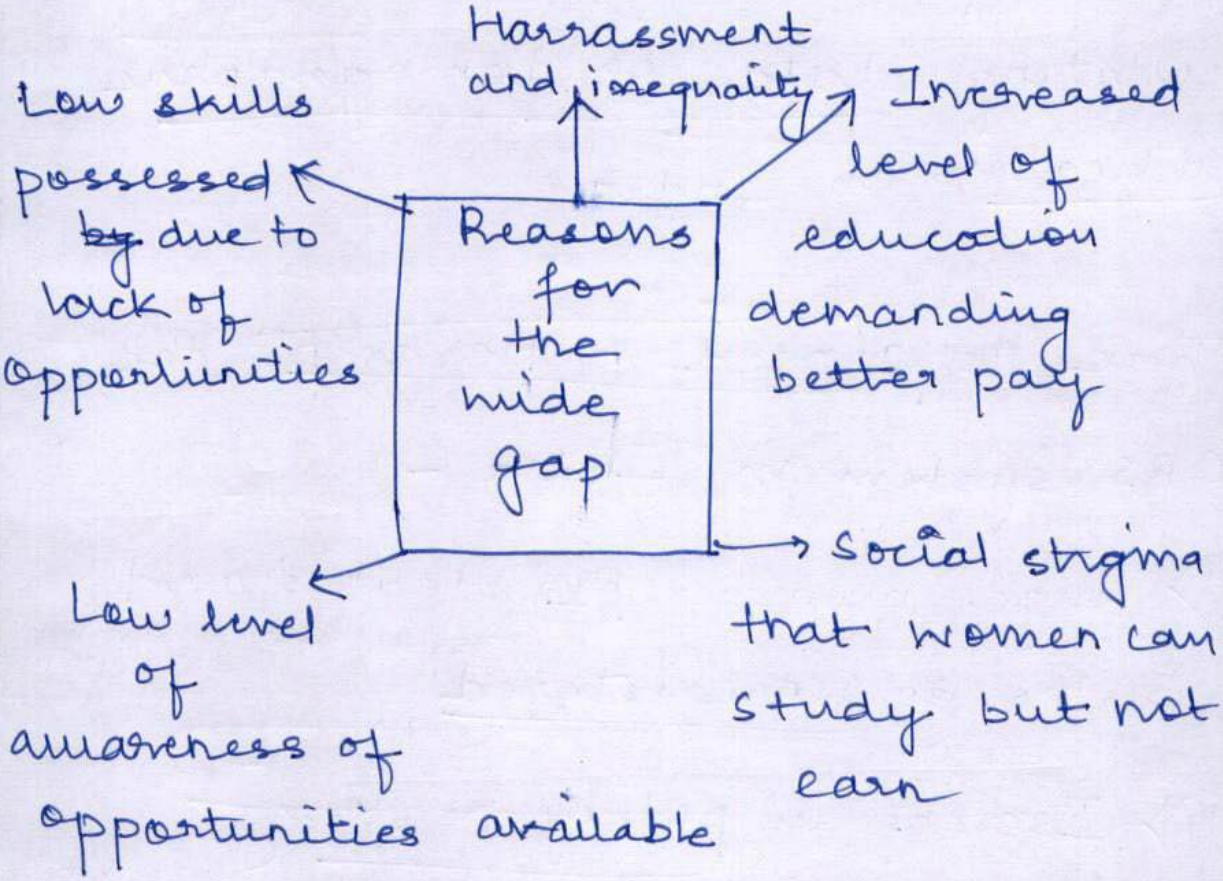
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rate (FLFPR) has decreased to 33%. (Economic survey 2022-23)

→ Only around 20% of jobs are held by women.



This can be addressed by –

→ Improving female led MSMEs and labour intensive sectors

→ Skill development, equal pay

→ gender equality in education (NEP 2020)

Women's participation in workforce can increase GDP by 1.5%.

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